IN THE NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI BENCH (COURT – II)

Item No.1
CA(CAA)-60/2021

IN THE MATTER OF:

M/s.BG INDIA Energy Pvt.Ltd. And M/s.BG INDIA Energy Solutions Pvt.Ltd. ... **Applicant/Petitioner**

Under Section: 230 of the Companies Act, 2013

Order delivered on 24.08.2021

CORAM:
SHRI. ABNI RANJAN KUMAR SINHA,
HON'BLE MEMBER (J)

SHRI. L. N. GUPTA,
HON'BLE MEMBER (T)

PRESENT:

ORDER

Order is pronounced in the Open Court today.

-Sd-

(L.N. GUPTA)
MEMBER (T)

-Sd-

(ABNI RANJAN KUMAR SINHA)
MEMBER (J)

Parul

NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI BENCH (COURT- II)

C.A.(CAA)-60/ND/2021

IN THE MATTER OF SCHEME OF MERGER BY WAY OF ABSORPTION:

AMONGST

BG INDIA ENERGY PRIVATE LIMITED

... Applicant No.1/Transferor Company

AND

BG INDIA ENERGY SERVICES PRIVATE LIMITED

...Applicant No.2/ Transferor Company

AND

BG LNG REGAS INDIA PRIVATE LIMITED

...Applicant No.3/ Transferor Company

WITH

BG INDIA ENERGY SOLUTIONS PRIVATE LIMITED

..Applicant No. 4/Transferee Company

AND

THEIR RESPECTIVE SHAREHOLDERS AND CREDITORS

Order Delivered on : 24.08.2021

Section: 230 to 232 of the Companies Act, 2013

CORAM

SH. ABNI RANJAN KUMAR SINHA, HON'BLE MEMBER (JUDICIAL)
SH. L. N. GUPTA, HON'BLE MEMBER (TECHNICAL)

PRESENT

For Applicants : Shripal Lakadawala, Adv.
For RD : Shankari Mishra,
For OL : Hemlata Rawat Adv., Ayushman Vatsyayana, Adv.

ORDER

PER SHRI L. N. GUPTA, MEMBER (T)

Under consideration is the Application No. C.A.(CAA) 60/ND/2021 jointly filed by the Transfer and Transferee Companies (**together called as "Applicant Companies" hereinafter**) under Sections 230 to 232 of the Companies Act, 2013. The prayer made is to dispense with convening and holding of the meeting of Shareholders and Creditors in relation to the Transferor and Transferee Companies for approval of the 'Scheme of Merger by way of Absorption' (**"Scheme" for brevity hereinafter)**, which shall take effect from the Appointed Date of 01.04.2020.

2. It is pertinent to mention here that the Applicant Companies vide two affidavits dated 24.06.2021 and 30.07.2021 have also filed certain additional documents on record. The details of the Applicant Companies are given in the following paragraphs.

3. That M/s BG India Energy Private Limited (hereinafter referred to as the **"Transferor Company No.1")** having CIN No. U40200DL1998PTC 176478 is a Private Limited company incorporated on 24.04.1998 under the Erstwhile Companies Act, 1956. The registered office of the Transferor Company No.1 is situated at 3-C, World Trade Tower, Near Barakhamba Lane, New Delhi-110001.

4. That M/s BG India Energy Services Private Limited (hereinafter referred to as the **"Transferor Company No. 2"**) having CIN No. U40109DL 2005PTC181749 is a Private Limited company incorporated on 12.05.2005 under the Erstwhile Companies Act, 1956. The registered office of the Transferor Company No. 2 is situated at 3-C, World Trade Tower, Near Barakhamba Lane, New Delhi-110001.

5. That M/s BG LNG Regas India Private Limited (hereinafter referred as the **"Transferor Company No. 3"**) having CIN no. U74999DL2000 PTC175347 is a Private Limited company incorporated on 22.11.2000 under the Erstwhile Companies Act, 1956. The registered office of the Transferor Company No.3 is situated at 3-C, world Trade Tower, Near Barakhamba Lane, New Delhi-110001.

6. That M/s BG India Energy Solutions Private Limited (hereinafter referred as the **"Transferee Company"**) having CIN No. U40101DL2004 PTC174307 is a company incorporated on 17.11.2004 under Erstwhile Companies Act, 1956. The registered office of the Transferee Company is situated at 3-C, World Trade Tower, Near Barakhamba Lane, New Delhi-110001.

7. That the Registered offices of all the Companies are situated in Delhi and therefore, the jurisdiction lies with this Bench.

8. It is seen from the record that the Board of Directors of all the Applicant Companies vide separate meetings held on 15.03.2021 have approved the proposed 'Scheme of Amalgamation'. It is submitted that the Board of Directors of all the Applicant Companies are of the view that the proposed Scheme would benefit their Shareholders, creditors and the employees.

9. It is stated by the Applicant Companies that all the applicant companies are part of the Shell Group of Companies and their ultimate holding company is the Royal Dutch Shell Plc. The Royal Dutch Shell Plc has proposed to consolidate its entities in order to rationalise the corporate structure in India. The Applicant Companies have submitted that as a result of consolidation, the following benefits will accrue :

i. *"Reduction of Companies in India and regulatory compliances thereof;*
ii. *Streamlining the holding structure;*
iii. *Ease of Management; and*
iv. *Reduction of operating and administrative costs."*

10. That all the Applicant Companies have filed their Affidavits in compliance of Section 230(2)(a) of Companies Act 2013 submitting therein that none of the Applicant Companies are under any prosecution/ investigation/ inquiry under Companies Act 2013. It is submitted that no petition under Section 240 or 242 of the Companies Act, 2013 or winding Petition is filed or pending against any of the Applicant Companies.

11. That the Applicant Companies have also placed on record the Certificate from the Statutory Auditors confirming that their Accounting Standards are in conformity with the provision of Section 133 of the Companies Act 2013.

12. That the Applicant Companies have filed their respective Memorandum of Association (MoAs) and Articles of Association (AoAs). The Applicant Companies have also filed their latest Balance Sheets as on 31.03.2020.

13. That the '100% in value' of the unsecured creditors of all the Applicant Companies have given 'no objection' to the "Scheme" on the respective affidavits. Therefore, the requirement of convening the Meetings of Unsecured Creditors of the applicant companies is dispensed with.

14. Since there are no Secured Creditors in any of the Applicants Companies, the requirement of convening their meeting does not arise.

15. That in the Applicant Companies have made prayer for convening the meetings of their respective Shareholders. Therefore, the following directions are passed :

i. That as per the averment made in the application, all the Applicant Companies have 2 shareholders each. Accordingly, it is ordered that :

- The meeting of the Equity Shareholders of Applicant company No. 1 is scheduled to be held on 06.10.2021, at 10:30 A.M. at the Registered office of the Transferor Company No. 1 either in physical or virtual mode.

- The meeting of the Equity Shareholders of Applicant Company No. 2 is scheduled to be held on 06.10.2021, at 11:30 A.M. at the registered office of the Transferor Company No. 2 either in physical or virtual mode.

- The meeting of the Equity Shareholders of Applicant Company No. 3 is scheduled to be held on 06.10.2021, at 12:30 A.M. at the registered office of the Transferor Company No. 3 either in physical or virtual mode.

- The meeting of the Equity Shareholders of Applicant Company No. 4 is scheduled to be held on 06.10.2021, at 2:30 A.M. at the registered office of the Transferee company. either in physical or virtual mode.

ii. Publication of the notice of the proposed meeting will be made in the "Business Standard" (English, Delhi Edition) and "Jansatta" (Hindi, Delhi Edition). The notices in this regard shall be sent by Courier or Registered Post or Speed Post or Email, addressed to each of the shareholder of the Applicant Companies at their last known address or email addresses as per its records. The notice shall be issued with clear 30 days prior to the date of the meeting. The Quorum for the meeting is fixed at 2 Shareholders. If the quorum is not complete at the time of the meeting, it shall adjourn the meeting by 30 minutes, and the members present after 30 minutes shall be deemed to constitute the quorum for the said meeting. As proposed by the Applicant Companies, the meeting will

be chaired by Mr. Kamal Piyush (Email Id: kamalpiyush@ksaindia.in) having registration No. IBBI/IPA-001/IP-P00476/2017-2018/10819 or in his absence by Mr. Anuj Maheshwari (Email Id: anuj@vksa.in) having registration No. IBBI/IPA-001/IP-P00577/2017-2018/11018. Mr. Mohit Kumar Gupta (Email Id: mohitgupta1112@yahoo.co.in) having registration No. IBBI/IPA-001/IP-P00782/2017-2018/11355 is appointed as Scrutinizer. The Chairman's Report shall be filed before this Tribunal within 7 days from the conclusion of this meeting.

iii. As per the prayer made by the Applicant Companies in the present Scheme of Amalgamation, this Bench directs, in accordance to Section 230(5) of the Companies Act, 2013, the Applicant Companies shall serve the notices of these meetings to the following Authorities, namely :

(a) Central Government through Regional Director (Northern Region), Ministry of Corporate Affairs,
(b) Registrar of Companies (NCT of Delhi & Haryana), Ministry of Corporate Affairs,
(c) Official Liquidator, attached to the Delhi High Court;
(d) Jurisdictional Income Tax Authorities,
(e) Such other Sectoral Regulatory Authorities, which govern working of the Companies involved in the Scheme;

at least 30 days before the date fixed for the meeting of equity shareholders.

iv. The Applicant Companies are directed to place the notice on their respective website, and also on the Notice board of the registered office of Companies. The Applicant Companies are also directed to file the proof of service along with the paper publication, by way of an affidavit before the date of meeting.

v. The authorities are directed to raise objection/representation, if any, within 30 days from the date of receipt of the Notice. In the event that no objection or representation is made within the stipulated timeframe, it shall be presumed that they do not have any objection.

vi. The Company Petition(s) shall be presented within 7 days from the date of filing of all the Chairman's Reports with the Registry of this Tribunal.

16. **The Application is allowed in the aforesaid terms.**

-Sd-

(L. N. Gupta)
Member (T)

-Sd-

(Abni Ranjan Kumar Sinha)
Member (J)